

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

INTERMODAL MOTOR CARRIERS CONFERENCE, AMERICAN
TRUCKING ASSOCIATIONS, INC., *Complainant*

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT ASSOCIATION
INC.; CONSOLIDATED CHASSIS MANAGEMENT, LLC;
CMA CGM S.A.; COSCO SHIPPING LINES CO. LTD.;
EVERGREEN LINE JOINT SERVICE AGREEMENT, FMC NO.
011982; HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK A/S;
MSC MEDITERRANEAN SHIPPING COMPANY S.A.;
OCEAN NETWORK EXPRESS PTE. LTD.; WAN HAI LINES LTD.;
YANG MING MARINE TRANSPORT CORP.; AND
ZIM INTEGRATED SHIPPING SERVICES, *Respondents*.

DOCKET NO. 20-14

Served: December 14, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER TO CORRECT PUBLIC FILINGS

In this proceeding, three motions for summary decision are pending. The parties filed multiple documents, including the motions, oppositions, and replies as well as proposed statements of material fact and responses. The parties also filed nine motions for confidential treatment. As explained below, corrected public versions of two filings must be filed by December 23, 2022.

On August 25, 2020, an initial order was issued which provided detailed information about filing confidential material. If confidential information was filed, a “motion justifying confidential treatment” was required which showed “good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information.” Initial Order at 5 (citing 46 C.F.R. § 502.141(j)(1)). Regarding marking confidential information, the initial order stated:

Marking confidential material – In the confidential version, confidential information must be conspicuously and clearly marked on each page, for example by highlighting or braces. The public version must indicate on the cover page and on each affected page “Public version – confidential materials excluded.” The public version must clearly indicate any omissions, for example with blackout or braces, and its pagination and depiction of text on each page must be identical to that of the confidential version. For example, the confidential filing may read: “On January 1, 2010, Complainant entered into

a {25} year lease with respondent for a monthly rent of {\$1000}.” The public version would read: “On January 1, 2010, Complainant entered into a { } year lease with Respondent for a monthly rent of { }.”

Initial Order at 5.

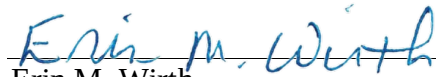
In two filings, the parties failed to properly redact the public versions. In both cases, the public versions redact more than is marked confidential in the confidential version. The parties must file properly redacted public versions of these two documents. These corrections are necessary to ensure the public’s ability to understand the decision issued. No changes will be permitted to the confidential versions of filings – only the public versions may be resubmitted.

The first document is Complainant’s Response to Respondents’ Motions for Summary Decision, public version filed on June 2, 2022 (confidential version filed May 27, 2022). The confidential version properly marks material for which confidential treatment is sought by highlighting it in yellow. For example, on page 13, the confidential version has 4 full lines plus 7 partial lines which include information marked as confidential. However, in the public version, 17 full lines plus 2 partial lines are redacted. This document has been reviewed and at most the information identified by yellow highlight in the confidential version may be entitled to confidential treatment. The excess information redacted from the public version does not meet the criteria for confidential treatment and may not be redacted from the public version. Complainants must file a “Corrected” public version of their Response to Respondents’ Motions for Summary Decision that only redacts the information highlighted in yellow throughout the confidential version.

The second document is Respondents’ Response to IMCC’s Statement of Material Facts, public version filed on June 2, 2022 (confidential version filed May 27, 2022). This document includes the facts proposed by IMCC, along with Respondents’ responses. When IMCC filed its Statement of Undisputed Material Facts, the confidential version highlighted in yellow material for which it sought confidential treatment and the public version redacted that same information. However, when Respondents copied IMCC’s proposed facts, Respondents changed the redaction to redact additional information. For example, for IMCC proposed fact 3, IMCC redacted 11 numbers. In Respondents’ filing, Respondents redacted 10 full lines of text, approximately 150 words, when it copied IMCC’s proposed fact. The information redacted is publicly available in IMCC’s filing and is not entitled to confidential treatment. Respondents must file a “Corrected” public version of their Response to IMCC’s Statement of Material Facts that only redacts the information highlighted in yellow, which was redacted by IMCC, for each fact proposed by IMCC. Respondents are not required to change the redactions in their responses to each of IMCC’s proposed facts.

It is noted that Respondents consistently failed to mark confidential information in the confidential versions of their briefs and proposed findings of fact. This creates additional challenges for the undersigned but it does not impact the public and therefore, corrections will not be required for these confidential filings. The parties should note, however, that in the future, filings where confidential material is not properly marked in either the confidential or public versions may be summarily rejected.

For the reasons above, it is hereby **ORDERED** that Complainant file a Corrected Public Version of Complainant's Response to Respondents' Motions for Summary Decision by December 23, 2022. It is **FURTHER ORDERED** that Respondents file a Corrected Public Version of Respondents' Response to IMCC's Statement of Material Facts by December 23, 2022. No changes will be permitted to the confidential versions of filings.


Erin M. Wirth
Chief Administrative Law Judge